Federal Communications Commission

Band Mc	Service	Class of station	Frequency Mc	Nature of services of stations
7	8	9	10	11
			152.2475-152.4725 (NG54)	LAND TRANSPORTATION
156.25-157.45 (NG1) (NG7)	Maritime mobile.	a. Coast. b. Ship.	156.3	MARITIME MOBILE (NG8)
			156.35	MARITIME MOBILE
			156.4	MARITIME MOBILE (NG31)
			156.45	MARITIME MOBILE
			156.5	MARITIME MOBILE (NG31)
			156.55	MARITIME MOBILE
			156.6	MARITIME MOBILE (NG9) (NG31)
			156.65	MARITIME MOBILE
			156.7	MARITIME MOBILE
			156.8	MARITIME MOBILE (NG10)
			156.9	MARITIME MOBILE
			156.95	MARITIME MOBILE
			157.0	MARITIME MOBILE (NG31)
			157.05	MARITIME MOBILE
			157.1	GOVERNMENT
			157.15	Do.
			157.2	Do.
			157.25	MARITIME MOBILE
			157.3	Do.
			157.35	Do.
			157.4	Do.
157.45-161.575 (NG1) (NG7)	Land mobile.....	a. Base. b. Land mobile	157.4875-157.7325 (NG54) (NG55)	LAND TRANSPORTATION
			159.4875-161.5675 (NG54) (NG55)	LAND TRANSPORTATION (NG11) (NG35) (NG40)
161.575-161.625 (NG1) (NG7)	Maritime mobile.	a. Coast. b. Ship.	161.6 (NG52)	MARITIME MOBILE (NG11) (NG35) (NG53)
161.625-161.825 (NG1)	Land mobile.....	a. Base. b. Mobile.	161.6325-161.8175 (NG54)	LAND TRANSPORTATION (NG11) (NG35)
161.825-162.0 (NG1) (NG7)	Maritime mobile.	Coast.	161.85	Coast (NG35)
			161.9	Coast
			161.95	Do.
			162.0	Do.

2. Add new footnotes NG52, NG53, NG54 and NG55 to § 2.104 (a) (5) to read as follows:

NG52 On the condition that harmful interference is not caused to stations in the Land Transportation Radio Service, the frequency 161.6 Mc is available for use only in conjunction with 157.0 Mc as a duplex frequency pair for port operation functions.

NG53 Existing licensees authorized as of May 15, 1958, to operate Land Transportation Radio Service stations on the frequency 161.61 Mc may continue such operation in accordance with Commission rules until further order of the Commission. In the interim, existing authorizations may be renewed or modified to permit expansion of existing systems, but no new systems will be authorized.

NG54 The frequencies shown in column 10 are the first and last assignable frequencies in this band. While the normal spacing between assignable frequencies is 30 kc, the Commission, at its discretion, may assign frequencies separated by only 15 kc under the conditions specified in Part 16 of the Commission's Rules.

NG55 Notwithstanding the frequency limits specified in footnote NG54, as a special condition, the frequencies 157.450 and 159.480 Mc may be assigned to stations in the Land Transportation Service for single-sideband operation on the condition that only the upper sideband is employed.

3. Delete footnotes NG19 and NG37 from § 2.104 (a) (5).

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

[F. R. Doc. 58-2932; Filed, Apr. 18, 1958; 8:54 a. m.]

[Rules Amdt. 8-4]

PART 8—STATIONS ON SHIPBOARD IN THE MARITIME SERVICES

FREQUENCIES FOR WORKING

The Commission having under consideration the desirability of making an editorial change in § 8.324 (e) (2) of its rules and regulations; and

It appearing that the amendment adopted herein is editorial in nature for the purpose of correcting the frequency band 8874–8476 kc to 8374–8476 kc and, therefore, prior publication of notice of proposed rule making under the provisions of sections 4 (a) and (b) of the Administrative Procedure Act is unnecessary, and for the same reason the effective date provisions of section 4 (c) of the Administrative Procedure Act need not be complied with; and

It further appearing that the amendment adopted herein is issued pursuant to authority contained in sections 4 (i), 5 (d) (1), and 303 (r) of the Communications Act of 1934, as amended, and section 0.341 (a) of the Commission's Statement of Organization, Delegations of Authority and Other Information;

It is ordered, This 15th day of April 1958, that effective April 25, 1958, § 8.324 (e) (2) is amended as set forth below.

Released: April 16, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. Section 8.324 (e) (2) is amended by deleting the present text thereof and substituting the following therefor:

(2) For use by ship stations (public or limited) on board cargo ships, each of specific frequencies designated in table 1-c of Appendix II to this part in the following bands:

2065–2107 kc.
4187–4238 kc.
6280.5–6357 kc.
8374–8476 kc.
12561–12714 kc.
16748–16952 kc.
22270–22400 kc.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

[F. R. Doc. 58-2933; Filed, Apr. 18, 1958; 8:54 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1615]

[1580463]

ALASKA

REVOKING EXECUTIVE ORDER NO. 6946 OF JANUARY 11, 1935, WHICH WITHDREW PUBLIC LANDS FOR ADMINISTRATIVE PURPOSES; WITHDRAWING PORTION OF RELEASED LANDS FOR USE OF UNITED STATES FISH AND WILDLIFE SERVICE AS DILLINGHAM ADMINISTRATIVE SITE

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 6946 of January 11, 1935, which reserved and set

apart 23.62 acres of public lands in Alaska now described as United States Survey No. 2262, for the joint use and occupancy of the Bureau of Biological Survey, Department of Agriculture (now United States Fish and Wildlife Service, Department of the Interior) and the Alaska Game Commission for a wildlife administrative site, is hereby revoked.

2. Subject to valid existing rights, the following-described land, which is a portion of the lands described in Paragraph 1 of this order, is hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws, nor the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604), as amended, and reserved for use of the United States Fish and Wildlife Service, Department of the Interior, as the Dillingham Administrative Site:

Beginning at Corner 1 of U. S. Survey No. 2262, which is Corner 11 of U. S. Survey No. 2732A, on the west side of Dillingham Townsite, about 1,600 feet north of the Nushagak River, thence

N. 7°15' W., 19.08 chs. along line 1–2 of Survey 2262,
East 10.68 chs., along line 2–3 of said survey,
South 15.93 chs.,
West 5.27 chs.,
South 3.00 chs., to point on the south boundary of U. S. Survey No. 2262,
West 3.00 chs., to point of beginning.

The area described contains 16.36 acres.

3. The following-described land has been classified for lease or sale under the act of June 4, 1954 (68 Stat. 173; 43 U. S. C. 869), and may therefore not be appropriated under any other public-land law:

Beginning at a point on line 3–4, U. S. Survey No. 2262, from which corner No. 3 bears North 4.00 chains, thence:

West 3.00 chs.,
South 11.93 chs.,
East 3.00 chs.,
North 11.93 chs. to point of beginning.

The tract described contains 3.58 acres.

4. This order shall not become effective to change the status of the remaining lands, aggregating 3.68 acres, until 10:00 a. m. on May 21, 1958. At that time the said land shall become subject to application, petition, location and selection under the applicable public land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference right filing period for Veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended. The Territory of Alaska has waived, as to these lands, its preference right of selection afforded it by the act of July 28, 1956 (70 Stat. 709; 48 U. S. C. 46–3b).

5. The restored lands have been open to applications and offers under the mineral-leasing laws and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals at 10:00 a. m., on August 20, 1958.

ROGER ERNST,
Assistant Secretary of the Interior.

APRIL 15, 1958.

[F. R. Doc. 58-2892; Filed, Apr. 18, 1958; 8:48 a. m.]

[Public Land Order 1616]

[Utah 010096]

UTAH

PARTIALLY REVOKING PUBLIC LAND ORDER NO. 983 OF JULY 22, 1954

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Public Land Order No. 983 of July 22, 1954, which reserved public lands in Utah for use of the United States Atomic Energy Commission, is hereby revoked so far as it affects the following described lands:

SALT LAKE MERIDIAN

T. 35 S., R. 18 E.,
Secs. 34 and 35.
T. 36 S., R. 18 E.,
Secs. 3, 4, 9, 10 and 14;
Sec. 25, S½;
Sec. 26.
T. 35 S., R. 19 E.,
Secs. 1, 2, 3, 4, 9, 10, 11, 12, 13, 14, 15, 16, 21, 22, 23, and 24.
T. 36 S., R. 19 E.,
Sec. 17;
Sec. 18, E½;
Sec. 19, E½;
Sec. 20.
T. 35 S., R. 20 E.,
Secs. 6, 7, 8, 17, 18 and 19.

The areas described aggregate approximately 21,440 acres.

2. The lands are rough and mountainous and all of them are a part of the Manti-LaSal National Forest except sections 4 and 9, T. 36 S., R. 18 E.

3. No application for lands in secs. 4 and 9 may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. Subject to any valid existing rights and the requirements of applicable law, the said sections 4 and 9 are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on May 21, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on August 20, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on August 20, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The national forest lands shall, at 10:00 a. m., on May 21, 1958, be open to such disposition including locations under the United States mining laws as may by law be made of National Forest lands. Sections 4 and 9 of T. 36 S., R. 18 E., however, shall not be open to location under the mining laws until 10:00 a. m., on August 20, 1958. All the lands have been opened to applications and offers under the mineral leasing laws.

5. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

ROGER ERNST,
Assistant Secretary of the Interior.

APRIL 15, 1958.

[F. R. Doc. 58-2893; Filed, Apr. 18, 1958; 8:48 a. m.]